

TAB 2



Board of Education Report

File #: Rep-231-23/24, **Version:** 1

Approval of Facilities Contracts Actions

May 7, 2024

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment “A” including: award of advertised construction contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of informal contracts; award of goods and services contract; extra services/amendments for architectural and engineering contracts and approve the proposed contracts listed in Attachment B including architectural and engineering services contract capacity increase amendment.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013, Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

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Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up-to-date facilities that promote learning.

Equity Impact:

Not Applicable.

Issues and Analysis:

There are no policy implications on these agreements.

Attachments:

Attachment “A” - Ratification of Facilities Contracts Actions Awarded Under Delegated Authority

Attachment “B” - Approval of Facilities Contracts Actions Not Under Delegated Authority

Linked materials previously adopted Board report(s) referenced:

- In the background [Board Report No. 048-13/14 <https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view>](https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view), dated November 12, 2013, Informative
- In the policy implications [Board Report No. 444-17/18 <https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view>](https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view), dated May 8, 2018.

Informatives:

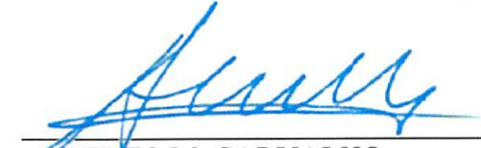
Not Applicable.

Submitted:

04/09/24

File #: Rep-231-23/24, Version: 1

RESPECTFULLY SUBMITTED,


 ALBERTO M. CARVALHO
 Superintendent

APPROVED BY:

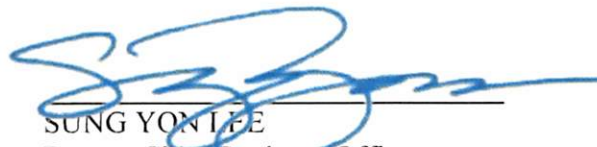

 PEDRO SALCIDO
 Deputy Superintendent,
 Business Services & Operations

REVIEWED BY:


 DEVORA NAVERA REED
 General Counsel

☒ Approved as to form.

APPROVED BY:

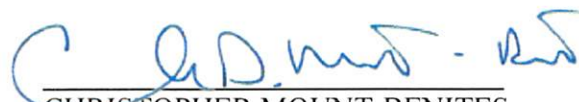

 SUNG YON LEE
 Deputy Chief Business Officer
 Business Services and Operations

REVIEWED BY:

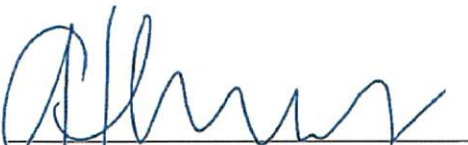

 NORBERTO DELGADILLO
 Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement

APPROVED & PRESENTED BY:


 CHRISTOPHER MOUNT-BENITES
 Chief Procurement Officer
 Procurement Services Division

REVIEWED BY:


 KRISZTINA TOKES
 Chief Facilities Executive

☒ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
R Brothers, Inc. (SBE)	2410045 / 4400012867	<u>Sepulveda MS</u> Accessibility Enhancement Project Board Member: <u>Kelly Gonez</u>	<i>Bond Funds (100%)</i>	\$6,640,000

Ratification of formally competed best value contract selected from six (6) bids received to construct and deliver an accessibility enhancement project at Francisco Sepulveda Middle School as authorized on June 8, 2021 ([Board Report No. 372-20/21](#)).

The project upgrades the following facilities to comply with the Americans with Disabilities Act (ADA) and improve program accessibility: doors/jambs, door hardware, thresholds, accessible paths of travel, signs, restrooms, restroom accessories, drinking fountains, sinks/sink cabinets, assistive listening devices, phones, concrete ramps, metal ramps, pieces of accessible furniture, railings, a locker room modification, lockers, a parking area, casework/counters, door modifications/auto openers, and new stage lifts. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2012.

Contract Term: 03/11/24 through completion.

Contract Value: \$6,640,000

Requester:

Steve Boehm, Acting Director of Facilities Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Geronimo Concrete, Inc. (SBE)	2410070 / 4400012961	<u>112th Street ES</u> Flooring Replacement Board Member: <u>Tanya Ortiz Franklin</u>	<i>Bond Funds</i> (100%)	\$2,736,895

Ratification of formally competed contract selected from two (2) bids received to provide flooring replacement as authorized on November 13, 2018 ([Board Report No. 135-18/19](#)).

The project is to replace deteriorated campus-wide flooring and address the floor slab settlement in Buildings A and B. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2005.

Contract Term: 03/25/24 through completion.

Contract Value: \$2,736,895

Requester:

Greg Garcia, Acting Director of Facilities Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Beta Investments and Contracts, Inc. (SBE)	2410071 / 4400012946	<u>Grape Street ES</u> Ceiling System Improvements Board Member: <u>Tanya Ortiz Franklin</u>	<i>Bond Funds</i> (100%)	\$2,099,500

Ratification of formally competed contract selected from two (2) bids received to provide ceiling system improvements as authorized on May 13, 2014 ([Board Report No. 393-13/14](#)).

The project is to install new seismic compression struts and replace the deteriorated ceiling system in the Administration Building.

Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 1994.

Contract Term: 04/29/24 through completion.

Contract Value: \$2,099,500

Requester:

Greg Garcia, Acting Director of Facilities Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Reliable Floor Covering, Inc. (SBE)	2410080 / 4400012922	<u>Eagle Rock HS</u> Flooring Replacement Board Member: <u>Jackie Goldberg</u>	<i>Bond Funds</i> (100%)	\$2,889,000

Ratification of formally competed contract selected from two (2) bids received to provide flooring replacement as authorized on June 18, 2019 ([Board Report No. 413-18/19](#)).

The project is to replace deteriorated vinyl tile, rubber tile and hardwood flooring campus-wide. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 1998.

Contract Term: 04/24/24 through completion.

Contract Value: \$2,889,000

Requester:

Greg Garcia, Acting Director of Facilities Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item E

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Thomasville Construction, Inc. (SBE)	2330001 / 4400011607 (2330001.01)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$1,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 2015. These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Contract term including this amendment: 06/07/23 through 06/05/24.

Initial Contract Value:	\$ 350,000
*Amendment No. 1	\$1,000,000
<i>(Executed Date: 02/22/24)</i>	

Aggregate Contract Value: \$1,350,000

Requester:

Steve Boehm, Acting Director of Facilities Project Execution
Facilities Services Division

** Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item F**B. APPROVAL OF CHANGE ORDERS****March 2024 = \$5,233,452**

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for March 2024 (Average Transaction: \$72,164; Median Transaction: \$5,297)	32	\$2,309,253
	ii. New Construction contract credit change orders for March 2024:	1	<\$24,899>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for March 2024 (Average Transaction: \$15,998; Median Transaction: \$6,244):	201	\$3,215,553
	iv. Existing Facilities contract credit change orders for March 2024:	11	<\$266,456>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for March 2024, requiring 75 percent approval by the Board:	0	\$0

C.	COMPLETION OF CONTRACTS – March 2024	17	\$183,451,098
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$114,500)		
	A & B Letters for March 2024 (Average Transaction: \$50,007; Median Transaction: \$51,640)	24	\$1,200,156

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF GOODS AND SERVICES CONTRACTS

\$2,702

Item G

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>NOT-TO- EXCEED AMOUNT</u>
Los Angeles Department of Water and Power	2490006 / 4400012482	<u>Playa Vista ES</u> Board Member: <u>Nick Melvoin</u>	<i>General Fund - Unrestricted - Utilities (100%)</i>	\$2,702

Ratification of agreement to provide recycled water for irrigation purposes.

The contract provides the replacement of potable water used for irrigation at Playa Vista Elementary School with recycled water. In addition to conserving potable water for the community, the recycled water is provided at a reduced consumption rate.

These services provide operational effectiveness and modernized infrastructure. Pillar 4 is supported by this action.

Contract Term: 02/14/24 through 02/13/27

Contract Value: \$2,702

Requester:

Greg Garcia, Acting Director of Facilities Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

**EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND
ENGINEERING CONTRACTS**

\$331,514

Item H

CONTRACT NOS.	1620141/ 4400004749; 1720048/ 4400005973; 1820007/ 4400006097; 1920023/ 4400007774; 1920023/ 4400007774; 2320003/ 4400010838; 2320031/ 4400011643
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Extra services are for design work that is not covered under the original Agreement. February Extra Services are listed at the following link: [BOE 158 Extra Services](#).

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

ATTACHMENT B

APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF CONTRACT CAPACITY INCREASE

\$5,000,000*

Item I

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
Allen Compton Associates, Inc., dba SALT Landscape Architects (SBE)	2220002 / 4400009700
Architerra, Inc., dba Architerra Design Group (SBE)	2220003 / 4400009701
Cornerstone Studios, Inc. (SBE)	2220004 / 4400009702
Hongjoo Kim Landscape Architects (SBE)	2220005 / 4400009703
Land Images (SBE)	2220006 / 4400009704
MLA Green, Inc., dba Studio-MLA (SBE)	2220007 / 4400009705
Moore Iacofano Goltsman, Inc., dba MIG	2220008 / 4400009706
Nuvis (SBE)	2220009 / 4400009707
Pamela Burton & Company (SBE)	2220010 / 4400009708
Schmidt Design Group, Inc (SBE)	2220011 / 4400009709

Authorization to increase capacity of ten (10) formally competed architectural and engineering contracts to provide landscape architecture services Districtwide. The authority to increase or decrease individual amounts for these contracts will be limited to the total aggregate amount of \$10,000,000. The amount awarded per firm will be based upon project needs. Pillar 4 of the Strategic Plan is supported by this action.

Contract Term: 11/01/21 through 10/31/26, including two (2) one-year options.

Original Value \$5,000,000

*Additional Requested Value \$5,000,000

NOT-TO-EXCEED AGGREGATE AMOUNT

\$10,000,000 (50% Bond Funds, 50% ELOP)

Requester:

Greg Garcia, Acting Director of Facilities Maintenance & Operations
Facilities Services Division